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**Sent:** 10/25/2021 3:31:29 PM  
**To:** "Lowe, Claire (EGLE)" <LoweC9@michigan.gov>  
**Cc:** "Jeff Dietlin" <utilities@cadillac-mi.net>; "Brady, Donal (EGLE)" <BradyD6@michigan.gov>  
**Subject:** RE: City of Cadillac  
**Attachments:** 10-25-21 Ltr to Claire Lowe of EGLE.PDF

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10-25-21

Claire, per my earlier communication, here is a more formal response with intended schedule, which I submit on behalf of the City of Cadillac. I plan to keep you up to date with the process of selecting a consultant and follow-up steps. Advise if questions in the meantime. Chuck

**Charles E. Barbieri**

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**From:** Barbieri, Charles  
**Sent:** Monday, October 11, 2021 9:49 AM  
**To:** LoweC9@michigan.gov  
**Cc:** Jeff Dietlin  
**Subject:** City of Cadillac

Claire, this confirms our brief call. My plan is to send a letter describing the plan to retain a consultant and to respond to issues you have raised. I will be back in office next week at which time I will respond more formally. Chuck

**Charles E. Barbieri**

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**Reply To:** Lansing

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October 25, 2021

*Electronic Mail*

Claire Lowe  
Michigan Department of Environment, Great Lakes & Energy  
Gaylord District Office  
Water Resources Division  
2100 West M-32  
Gaylord, MI 49735

Dear Madam:

Re: City of Cadillac

This letter follows up on my brief electronic note of October 11, 2021 regarding the City of Cadillac's ("City") compliance with its NPDES permit. At that time, we confirmed the City's intention to address issues raised in your September 30, 2021 letter.

We would indicate at the outset that the City respectfully disagrees with several of your contentions. The City believes that its wastewater operations have generally complied with NPDES requirements and are not causing environmental harm or damage to the City's facilities.

Nevertheless, without any admission of violations or waiver of its defenses, the City will retain a consultant to work with the City and this office to improve its NPDES program. Although the City can work on a response to some of your issues relatively soon, the City must follow its bidding procedures to hire a consultant. It expects that it might take about six months to fully respond, given the bidding process and needed review of the City's current NPDES program. Our plan is to keep you informed of the bidding and retention process and to offer a more definitive timeline for the City's response after the consultant's retention. We would expect to offer an update in about five weeks. If there is any change in this schedule, we will advise you.

Claire Lowe  
October 25, 2021  
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Thanks for your consideration. Advise us if you have questions.

Very truly yours,

FOSTER SWIFT COLLINS & SMITH PC



Charles E. Barbieri

CEB:LDH

cc: Donal Brady